

Line 1

Case Name: *Hansraj Bhamu v. Ford Motor Company, et al.*

Case No.: 24CV447681

See Order above (Vacating Motion as Moot in light of July 27, 2026 Dismissal of Fifth Cause of Action for Fraudulent Inducement—Concealment).

Line 2

Case Name: *Ricardo Alvarez, et al. v. General Motors, LLC, et al.*

Case No.: 25CV457332

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant General Motors LLC (“GM” or “Defendant”) demurs under Code of Civil Procedure Section 430.10(e) to the First Amended Complaint (“FAC”) of Plaintiffs Ricardo Alvarez and Lucy Alvarez (“Plaintiffs”) on the grounds that:

- Plaintiffs’ First, Second, and Third Causes of Action alleging violations of the Song-Beverly Consumer Warranty Act are time-barred due to the expiration of the statutes of limitation and repose;
- Plaintiff Fourth Cause of Action for breach of the implied warranty is time-barred by the four-year statute of limitations;
- Plaintiffs cannot state their Fifth Cause of Action for fraudulent inducement-concealment because it is time-barred by the three-year statute of limitations and because Plaintiffs fail to sufficiently plead the essential elements of a fraud claim, specifically that GM had a duty to disclose.

Notice of Demurrer (the “Demurrer”) at 1:3-12 (filed: January 5, 2026).

The Demurrer came on for hearing on August 5, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations of the FAC

According to the FAC, on June 21, 2018, Plaintiffs entered into a warranty contract with GM for a 2018 Chevrolet Silverado 1500, vehicle identification number 3GCUKRER6JG232039 (“Subject Vehicle”), which was manufactured and/or distributed by Defendant GM. The contract warranted the Subject Vehicle “bumper-to-bumper”, including but not limited to powertrain, emission, etc. (FAC ¶¶ 6-7)

Before Plaintiffs’ purchase, GM knew that vehicles equipped with the same 8-speed transmission, as installed in the Subject Vehicle, suffered from one or more defects that resulted in various problems including harsh shifting, jerking, lurching, hesitation on acceleration, surging, or deceleration (“Transmission Defect”). GM acquired this knowledge through various sources of information, including but not limited to pre-production testing,